

An Act

ENROLLED SENATE
BILL NO. 1806

By: Paxton, Nice, and Goodwin
of the Senate

and

Lawson and Hill of the
House

An Act relating to foster care; directing the Department of Human Services to implement extension of foster care services; providing that services shall be voluntary; providing that services shall be available to certain individuals; providing requirements for receiving extended services; directing the Director to promulgate rules; amending 10 O.S. 2021, Sections 7505-1.1, as amended by Section 1 of Enrolled Senate Bill No. 1655 of the 2nd Session of the 60th Oklahoma Legislature, and 7510-1.5, which relate to children; providing that provisions of section shall not prohibit the Department from sharing adoptive information in certain circumstances; modifying provisions related to payment to parents; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Foster care services

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-7-112a of Title 10A, unless there is created a duplication in numbering, reads as follows:

A. The Department of Human Services shall implement an extension of foster care services to support individuals transitioning into adulthood who meet the requirements provided by this section. Participation in extended services under this section shall be a voluntary election by the qualifying individual. Services shall be available to any individual in this state who meets the requirements of subsection B of this section and who:

1. Was in the custody of the Department at the time of the individual's eighteenth birthday but is less than twenty-one (21) years of age; or

2. Achieved legal permanency by guardianship or adoption at sixteen (16) years of age or older but is less than twenty-one (21) years of age and the individual does not receive care from the parent or legal guardian.

B. Any individual described in subsection A of this section may receive extended services from the Department under this section if the individual is:

1. Completing secondary education or a program leading to an equivalent credential;

2. Enrolled in an institution that provides postsecondary or vocational education;

3. Participating in a program or activity designed to promote, or remove barriers to, employment;

4. Employed for at least eighty (80) hours per month; or

5. Incapable of doing any of the activities described in paragraphs 1 through 4 of this subsection due to a medical condition, which incapability is supported by regularly updated information in the case plan of the individual. In such a case, the individual shall be in compliance with a course of treatment as recommended by the Department.

C. 1. The Director of the Department of Human Services shall promulgate rules to implement the provisions of this section.

2. The Department of Human Services shall seek available funding to implement the provisions of this section.

SECTION 2. AMENDATORY 10 O.S. 2021, Section 7505-1.1, as amended by Section 1 of Enrolled Senate Bill No. 1655 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

Section 7505-1.1. A. Unless otherwise ordered by the district court exercising jurisdiction over the adoption proceeding, all hearings held in proceedings pursuant to the Oklahoma Adoption Code shall be confidential and shall be held in closed court without admittance of any person other than interested parties and their counsel.

B. All papers, records, and books of proceedings in adoption cases and any papers, records, and books relating to such proceedings:

1. Shall be kept as a permanent record of the court and maintained in a separate file by the court clerk; and

2. Shall be confidential and shall not be open to inspection or copy except as authorized in Sections 7504-1.2, 7505-3.2, 7505-6.6, 7508-1.2, and 7508-1.3 of this title or upon order of a court of record for good cause shown.

C. Upon application and notice to the person or agency in whose possession the records being sought are held, and for good cause being shown, any court of record may, by written order reciting its findings, permit the necessary information to be released, or may restrict the purposes for which it shall be used. The findings shall include the reasons the information being sought cannot be obtained through the methods authorized by Sections 7504-1.2, 7505-3.2, 7505-6.6, 7508-1.2, and 7508-1.3 of this title.

D. The provisions of this section shall not prohibit:

1. Persons employed by the court, the Department of Human Services, a child-placing agency, an attorney participating or assisting in a direct placement adoption, or any physician,

minister, or other person or entity assisting or participating in an adoption from providing partial or complete identifying information between a biological parent and prospective adoptive or adoptive parent if a biological parent and a prospective adoptive or adoptive parent mutually agree to share specific identifying information and each gives written, signed notice of their agreement to the court, the Department of Human Services, the child-placing agency, or any attorney participating or assisting in the direct placement adoption pursuant to the Oklahoma Adoption Code; or

2. Persons employed by the Department of Human Services from sharing the contact information of an adoptive parent of an adopted child enrolled in the Children's Specialty Plan, and other relevant information necessary for the continuity of care of the child, with the contracted entity that administers the Children's Specialty Plan. As used in this paragraph, the terms "Children's Specialty Plan" and "contracted entity" have the same meanings as provided in Section 4002.2 of Title 56 of the Oklahoma Statutes; or

3. The Department from sharing adoptive information necessary to ensure continuity of care for an adoptee who wishes to participate in extended foster care services under Section 1 of this act or sharing adoptive information necessary to carry out the Department's duties under Section 7510-1.5 of this title.

E. Any person in charge of adoption records or having access to adoption records or information who discloses any information, including, but not limited to, all records and reports relevant to the case and any records and reports of examination of the minor's parent or other custodian pertaining to an adoption proceeding, contrary to the provisions of this section, upon conviction thereof, shall be guilty of a misdemeanor.

SECTION 3. AMENDATORY 10 O.S. 2021, Section 7510-1.5, is amended to read as follows:

Section 7510-1.5. A. 1. When a parent or parents are found and approved for adoption of a child who is determined by the Department of Human Services to be eligible for adoption assistance pursuant to the Oklahoma Adoption Assistance Act, and before the final decree of adoption is entered, there must be a signed written

agreement between the prospective adoptive parent or parents and the Department.

2. Adoption assistance in individual cases may commence with the adoptive placement or at the time of finalization of the adoption. Adoption assistance may be for special services only, or for monthly money payments, and either for a limited period, or for a long term, or for any combination of the foregoing.

Eligibility for and the rate of monthly adoption assistance payments shall be determined by the Department in accordance with rules promulgated by the ~~Commission for~~ Director of the Department of Human Services.

B. When an otherwise eligible child is determined to have a causative, preexisting condition which was not identified or known prior to the legal finalization of the adoption and which has resulted in a severe medical or psychiatric condition that requires extensive treatment, hospitalization, or institutionalization, an adoption assistance agreement may be approved by the Department after the final decree of adoption has been entered. In the event an adoption assistance agreement is approved that provides for monthly adoption assistance payments, the adoptive parents may also be entitled to receive retroactive adoption assistance payments for a period not to exceed the two (2) months prior to the date the adoption assistance agreement was approved.

C. Any child who met the requirements of the provisions of Sections 7510-1.2 and 7510-1.4 of this title, and was determined eligible for Oklahoma adoption assistance with respect to a prior adoption, and is available for adoption because the prior adoption has been dissolved and the parental rights of the adoptive parents have been terminated or because the adoptive parents of the child have died, shall be eligible for Oklahoma adoption assistance with respect to any subsequent adoption.

D. 1. When adoption assistance benefits are for more than one (1) year, the Department shall send the adoptive parent or parents an Adoption Assistance Annual Review request and assure that the child who has attained the minimum age for compulsory school attendance and is eligible for an adoption assistance payment under

Title IV-E of the Social Security Act, 42 U.S.C., Section 670 et seq. is:

- a. enrolled in an institution that provides elementary or secondary education as determined under the law of this state or other jurisdiction in which the institution is located,
- b. instructed in elementary or secondary education by any other means legally authorized,
- c. in an independent study elementary or secondary education program in accordance with the law of this state or other jurisdiction in which the program is located, that is administered by the local school or school district, or
- d. incapable of attending school on a full-time basis due to a documented medical condition supported by regular updates.

2. The adoptive parent or parents shall at all times keep the Department informed of circumstances including, but not limited to, whether the adoptive parent or parents continue to be legally responsible for support of the child which would make them ineligible for such assistance payments or eligible for assistance payments in a different amount.

3. The Department is authorized and directed to make a review of each adoption assistance agreement annually to assure that the parents are fulfilling their obligations under the agreement.

4. No payment may be made to any parents with respect to any child who has attained the age of eighteen (18) years, except:

- a. with respect to an adoption assistance agreement entered into prior to the effective date of this act, a child may continue to receive assistance until the child reaches the age of nineteen (19) years if the child:

~~a.~~

- (1) continues to attend high school or pursues General ~~Education~~ Educational Development, or

~~b.~~

- (2) meets the criteria for an adoption assistance difficulty of care rate as determined by the Department, or

b. with respect to all other adoption agreements, an individual who attained sixteen (16) years of age prior to the effective date of the adoption assistance agreement may continue to receive assistance until the individual reaches twenty-one (21) years of age if the individual is:

- (1) completing secondary education or a program leading to an equivalent credential,
- (2) enrolled in an institution that provides postsecondary or vocational education,
- (3) participating in a program or activity designed to promote, or remove barriers to, employment,
- (4) employed for at least eighty (80) hours per month, or
- (5) incapable of doing any of the activities described in divisions (1) through (4) of this subparagraph due to a medical condition, which incapability is supported by regularly updated information in the case plan of the individual.

5. Termination or modification of the adoption assistance agreement may be requested by the adoptive parent or parents at any time.

6. No payment may be made to adoptive parents if the Department determines that the parents are no longer legally responsible for

the support of the child or that the child is no longer receiving any financial support from such parents.

E. A child for whom an adoption assistance agreement has been reached with the Department shall remain eligible and receive adoption assistance benefits regardless of the domicile or residence of the adopting parent or parents at any given time.

F. All records regarding adoption assistance shall be confidential and may be disclosed only in accordance with the provisions of the Oklahoma Adoption Code; provided, that nothing in this subsection shall be construed to prohibit the Department from disclosing the amount of adoption assistance paid on behalf of a child to:

1. A judge presiding over a matter in which support or custody of the subject child is at issue; or

2. The Department's Office of Inspector General, for purposes of investigating allegations of fraud against the State of Oklahoma or its programs.

SECTION 4. This act shall become effective July 1, 2026.

SECTION 5. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____